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Senate of Virginia Floor Session, Thursday, January 22, 2026

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[00:28:56] The Senate will come to order. The senators will please take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery. The senators and all in attendance will please stand if you're able and we will be led in prayer by the pastor Jonathan and stells of Hope Point Church in Chesterfield, and following the prayer, everyone will please remain standing and be led in the Pledge of Allegiance

[00:29:34] to the flag of the United States of America by Senate Page Oliver Holtzman from Shenandoah. - Good afternoon, let us pray. Dear Heavenly Father, we come to you today with a heart of gratitude to express our thankfulness for your everlasting love, your goodness and mercy, your generous heart, your provision and blessings, the precious gift of your presence and your unfailing kindness.

[00:30:01] For it is with your kindness that you draw us to repentance. We acknowledge that your word teaches us if your people who are called by your name will humble themselves and pray and seek your face, turn from their wicked ways, then you will hear from heaven and will forgive their sin and will heal their land.

[00:30:17] Gracious and forgiving Lord, we turn from our sin and we turn to you, Jesus. Please heal our land. We thank you for another day, for another sunrise, for another breath, for another opportunity to serve you, for this is the day that you have made, and we will rejoice and be glad in it.

[00:30:35] We thank you for this commonwealth and the nation of which it is a part, one nation under God, founded on biblical principles, a nation of liberty and freedom, which has long been a beacon of hope in a dark and oppressed world. We come to express our great need for you and for your wisdom, Lord.

[00:30:51] I thank you for the people assembled in this room, these lawmakers, for there is no authority except that which you have established. We acknowledge when the righteous are in authority, the people rejoice, when the wicked rule, the people groan. So we humbly ask for your wisdom to govern well, to institute laws according to your word, to your heart, to your justice, and to your mercy.

[00:31:13] We thank you that you have the promise that you have given us, that if any of us lacks wisdom, we should ask you, because you give generously to all without finding fault, and you will give it to us. The wisdom that comes from heaven is first of all pure, peace-loving, considerate, submissive, full of mercy, and good fruit, impartial and sincere. Gracious Father, please give us your wisdom. Lord, we've heard of your fame. We stand in awe of your deeds. Renew them in our day and in

[00:31:47] our time, make them known. In wrath, remember mercy. Lord, I ask that we return to you, that we live in your presence. I pray that we would acknowledge you, that we would press on to acknowledge you. For as surely as the sun rises, you will appear. You will come to us like the winter rains and like the spring rains that water the earth. Lord, our state, the great state of Virginia, needs refreshing

and revival. We ask that you would send it. Heavenly Father, you've shown us what is good and what you require of us to act justly, to love mercy and to walk humbly with you, to love the Lord with all our heart, with all our soul, with all our mind and with all our strength

[00:32:26] and to love our neighbor as ourselves. Jesus, we humbly ask for your help to do so. We know then how we should pray. Our Father who art in heaven, hallowed be thy name. Thy kingdom come, thy will be done on earth as it is in heaven. Give us this day our daily bread and forgive us our trespasses as we forgive those who trespass against us lead us not into temptation but deliver us from evil for thine is the kingdom and the power and the glory forever and ever in jesus name

[00:33:03] i pray amen amen i pledge allegiance to the flag of the united states of america and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:33:33] The clerk will call the roll. All those present, please vote aye.

[00:33:53] The clerk will close the roll. You have a quorum, Madam President. Senate Journal for Wednesday, January 21st, 2026. The senior senator from Virginia Beach moves that the reading of the journal be waived.

[00:34:11] All in favor of waiving the reading of the journal will record their vote aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[00:34:29] Ayes 36, noes 4. Ayes 36, noes 4. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. We do not have any, Madam President. The chair recognizes the senator from Eastern Fairfax.

[00:34:56] Good afternoon, Madam President. Good afternoon. My counter said we had a communication with the House of Delegates, so we don't? Not yet.

[00:35:11] Oh, okay, then I'll sit down. Thank you, Senator. The Chair, the Clerk will report any communications from the Governor. We do not have any, Madam President. Thank you.

[00:35:26] Now comes the time in our morning hour when we have the honor of welcoming our distinguished guests who are joining us here in the Senate Gallery. And today I share my daily reminder about our procedure. A senator will rise and provide an introduction for their visitors.

[00:35:44] I will then offer the welcome of the Senate. I ask that you please hold your applause until I have completed the senators, the Senate's welcome. The chair recognizes the senator from Colonial Heights.

[00:36:01] Thank you, Madam President. I rise for an introduction. The senator has the floor. President getting us off to a wonderful start. This afternoon was Pastor Jonathan Stelz from Hope Point Church in Chesterfield. He is the pastor and one of my legislative aides. Really enjoyed his prayer. I'd ask that we offer him the warm welcome of the Senate. I thank the Senator for that introduction and thank you to Pastor Stelz for joining us. Thank you for your invocation and your warm prayer for all of us today.

[00:36:35] And I ask that the Senators give the warm welcome of the Senate to Pastor Jonathan Stelz. The Chair recognizes the Senator from Hanover.

[00:36:58] Since he is temporarily away, the Chair recognizes the Senator from Alexandria. Thank you, Madam Chair. Madam President, I have an introduction.

[00:37:14] The Senator has the floor. I have two groups in the gallery, and I'd ask them to rise, the Moms Demand Action and Cornerstone Action, and if they're accompanied by the Students Demand Action, for them to rise as well. Moms Demand Action is a group of activists committed to ending gun violence, and I wanted to thank them for being here today.

[00:37:39] And they're accompanied from Alexandria by Cornerstone Craftsman, which empowers youth in Alexandria in skilled trades, building hope and creating career pathways for teens aged 12 to 17. And they are accompanied by Students Demand Action, which is not on your green sheet, but they're members of Students Demand Action.

[00:38:00] And on behalf of myself, the senator from Charlottesville, the senator from Central Fairfax, Eastern Fairfax and Colonial Heights, we have student leaders from all across the Commonwealth representing Alexandria City High School, UVA, George Mason University, First Colonial High School, and Hayfield Secondary School.

[00:38:21] Students Demand Action is comprised of young activists committed to ending gun violence in our country. They were founded after the tragedy in Parkland, Florida at Marjory Stoneman Douglas High School. And just over a few years, Students Demand Action now has over a thousand groups in high schools and universities across the country and active volunteers in every state.

[00:38:44] And I would ask that you extend to them, Madam Chair, to those three groups, the warm welcome of the Virginia Senate. I thank the senator for that introduction and want to extend a warm welcome to all of our guests here from Moms Demand Action, as well as Students Demand Action and Cornerstone Craftsman.

[00:39:05] Thank you for the work you're doing, and I hope you have productive conversations as you visit your legislators and their offices today. Senators, I ask that we give the warm welcome of the Senate to these organizations. The chair recognizes the senator from Hanover.

[00:39:28] Thank you, Madam President. Madam President, I rise for the purposes of an introduction. The senator has the floor. Madam President, today in the gallery, and I think you've probably seen around the Capitol, a number of individuals wearing blue corduroy jackets.

[00:39:46] These are young leaders from the Virginia FFA Association. And Madam President, you might not know this, but back when I was their age, which uh i didn't know the time went back that far um i used to be a ffa member and was actually the virginia state vice president of the ffa and madam president i will uh i do not fit in my jacket

[00:40:17] anymore todd but but you might um mr president madam president uh as you talk to these young leaders from Virginia you will not only learn about their commitment to the future of agriculture but also the development of skills for our leaders of tomorrow FFA was started in Virginia a hundred years ago Augusta County a hundred years ago 1926 now there's over 15,000 members these students are honing

[00:40:53] their skills in science technology entrepreneurship while upholding the core values of ffa and madam president i will tell you that my years and years of parliamentary procedure uh skills were honed through the ffa if you could offer these young women and men leaders of virginia's future the warm welcome of the senate and thank you thank them for their commitment to our communities not just agriculture but virginia well i thank you for the introductions

[00:41:29] senator and clearly we see the impact that the skills development have had on your own development as not just a parliamentarian but as a leader so thank you to to all of the work that happens with the future farmers of America and I thank the students for joining us today and certainly hope that you have a wonderful opportunity to meet with your legislators to talk about the issues that impact the communities that you are coming from and also to share your own passion around our future especially in agriculture knowing how critically

[00:42:09] important it is to the Commonwealth. Senators I ask that we give the warm welcome of the Senate to the FFA students who are joining us today. The chair recognizes the senator from Eastern Henrico. Thank you madam chair I rise for an introduction. The senator has the floor. Thank you madam president.

[00:42:35] And this is the annual Muslim Advocacy Day, hosted by the MOVE Chamber of Commerce and the Virginia Muslim Civic League, and I ask if they please stand if they are in the gallery. Over 200 Muslims from across the Commonwealth, from the Adams Centers and Dar al-Hijra in Northern Virginia, to the West End Islamic Center and the Islamic Center of Virginia here in Richmond, are here to advocate for the issues that matters most to their communities, constitutional rights supporting refugees and immigrants and pursuing social justice for all Muslims have a long and storied history here in our Commonwealth and they continue to positively contribute to our local

[00:43:14] communities as doctors teachers first responders and small business owners so I'm so thrilled to have them visiting the Capitol today and I'd ask that we give them the warm welcome of the Senate I thank the senator for that introduction and extend my welcome as well to the Virginia Muslim Civic League League. Thank you to the work that you're doing. Thank you to your advocacy on issues that impact all of our communities. I hope you have a wonderful visit in our capital today and wonderful opportunities to speak with your representatives. Thank you for being here. And Senators, I ask that we extend the warm welcome of the Senate to the Virginia

[00:43:50] Muslim Civic League. The chair recognizes the Senator from Chesapeake. thank you madam president madam president I rise for the purpose of a introduction I ask that Senator Lucas also stand the senator has the floor thank you madam president it is my pleasure to recognize Councilman Jeff Bunn a member of the Chesapeake City Council who is with us today from Chesapeake Councilman Bunn and I have had the privilege of serving on the Chesapeake School Board together for over ten years and during that time I

[00:44:28] came to know him as a dedicated public servant a thoughtful leader and someone who consistently puts the needs of students families and their community first his continued service to school City Council and the school board reflects that same commitment to our Chesapeake citizens and the people he represents madam president I ask that we give him the warm welcome of the Senate I thank the senator for that introduction and thank also the senator from Portsmouth for being part of this introduction and to the Councilman I say welcome to the Senate and to the Senate gallery today. We're delighted that you're

[00:45:08] here. Thank you for the work that you do on behalf of your community in Chesapeake. Senators I ask that we give the warm welcome of the Senate to Councilman Jeff Bunn. The chair recognizes the senator from Northern Fairfax.

[00:45:28] Good morning, President. Good morning. So today in the gallery, the senator has the floor i excuse me i rise for an introduction thank you thank you um today is road to redemption lobby day and today in the gallery we have representatives from a number of different organizations that i've had the pleasure of working closely with we have sisters in prison reform no left turns the humanization project brilliance behind bars aclu of virginia families against mandatory minimums and the People's Coalition.

[00:46:06] They are joined by a number of individuals who have really spent their lives advocating for others and some folks who are very close to my heart who are returning citizens. And I ask you to give them a warm Senate welcome if they would stand up.

[00:46:30] - Thank you, Senator, for that introduction. And yes, thank you for standing. This is a broad coalition. Thank you to the Road to Redemption Coalition for your presence here today. I know you've been engaging in some wonderful conversations with our representatives, and thank you for the work you do on the behalf of so many.

[00:46:53] Senators, I ask that we give the warm welcome of the Senate to the Road to Redemption Coalition. - The chair recognizes the senator from Central Fairfax.

[00:47:11] - Thank you, Madam President. I rise for the purposes of an introduction. - The senator has the floor. - Thank you, Madam President. Today in the gallery, we have Casa for their advocacy day. For over 40 years, Casa has served as the region's preemptive immigrant advocacy powerhouse, representing a lifetime membership of over 190,000 Latino, African, and working class individuals.

[00:47:37] now a national organization. CASA is primarily operating in Maryland, Georgia, Pennsylvania, and Virginia. In Virginia alone, the movement is closer to 12,000 members strong and rapidly expanding through Fairfax, Prince William County, Richmond, and Hampton Roads, and other areas of the Commonwealth.

[00:47:56] The organization has been at the forefront of fighting for civil rights. The organization has proven itself a fearless defender of human rights. It has always put humanity first by focusing on civil rights, climate justice, healthcare access, and economic empowerment.

[00:48:13] Today, alongside a coalition of dedicated allies, they're here to advocate for the community safety and trust agenda, and by empowering their members to lead their own campaigns for justice, CASA continues to redefine what is possible for organizations and socially conscious working class communities at the local, state, and national level.

[00:48:35] So I ask that you give them the warm welcome of the Senate. I thank the Senator for that introduction and join in extending the welcome to CASA. Thank you for being here. Thank you for representing so many different members and communities.

[00:48:51] I hope you have a productive day as you speak with legislators and as you visit so many different offices and speak on the issues that are impacting the communities you represent. Senators, I ask that we give the warm welcome of the Senate to CASA.

[00:49:16] - The chair recognizes the senator from Arlington. - Thank you, Madam President. I rise for two introductions. - The senator has the floor. - Thank you, Madam President. My first introduction is an acknowledgement that Planned Parenthood of Virginia has some advocates in the audience, and they are here to talk to lawmakers and to explain what Planned Parenthood actually does.

[00:49:49] Planned Parenthood actually serves 25,000 Virginians per year. They provide primary care and preventive care, services such as cancer screenings, STI testing and treatment, contraceptive care, and also other sexual and reproductive health care.

[00:50:11] They are important frontline providers. I hope it's the will of the Senate to welcome Planned Parenthood advocates of Virginia. I thank the Senator for that introduction, and thank you to the Planned Parenthood Advocates of Virginia for joining us today.

[00:50:26] I know you had an early start this morning, and you are actively speaking with so many of our legislators and sharing your issues and concerns. Thank you for the advocacy, Senators. I ask that we give the warm welcome of the Senate to the Planned Parenthood Advocates of Virginia.

[00:50:49] Thank you, Madam President. I will proceed with my second introduction. in the gallery, there are certified registered nurse anesthetists, and they are here in Virginia, this General Assembly, to actually observe policymaking. Many of them were at the Education and Health Committee this morning. CRNAs are advanced practice nurses. They provide patient-focused, safe, and cost-effective anesthesia care to Virginians across the

[00:51:26] Commonwealth. I do hope it's the will of the Senate to welcome the Certified Registered Nurse Anethicists. Thank you, Madam President. Thank you for that introduction and welcome indeed to our visitors in the gallery from the Virginia Association of Nurse Anesthesiology.

[00:51:43] Thank you for the work you do and thank you for sharing your efforts with our legislators today in those conversations. senators i ask that we give the warm welcome of the senate to our visitors the chair recognizes the senator from charlottesville madam president rise for an introduction the senator has the floor madam chair there's a group in the gallery from second look virginia a group that advocates for

[00:52:19] criminal justice reform i hope you will give them warm greetings to the senate thank you to the senator for that introduction if uh second look is in the gallery if you'll please stand thank you so much for joining us uh this this day thank you for being here in the senate gallery but thank you especially for the work you're doing as you speak to your representatives and share your advocacy on important issues i ask that the senate give the warm welcome

[00:52:51] to our visitors from second look virginia the chair recognizes the senator from mecklenburg thank you madam president i rise for an introduction the senator has the floor today in the gallery we are joined by members of the arc of south side if they'll rise if they can one of the 21 local chapters of the arc of virginia the only statewide advocacy organization

[00:53:26] representing virginia's with all types of develop developmental disabilities and their families so if you're here from anywhere in virginia representing the arc we hope you'll rise the group from south side did a fabulous job this morning educating me on all the things that are of importance to them i learned a lot that i did not know and they did an excellent job i even found out one of them reads my newsletter every week they are in richmond for the southwest dd advocacy day along with members of the ark of new river valley and other advocates from

[00:54:03] our region of the commonwealth after meeting with legislators they joined over 150 individuals from all across the commonwealth at the bell tower for the dd rally at the capitol organized by the arc in partnership with the disability law center of virginia the virginia board for people with disabilities seiu autism societies of northern virginia and central virginia virginia down syndrome association d3 and rev

up virginia the arc and its chapters are advocating the session for increased rates for essential waiver services funding for rental assistance employment support

[00:54:39] and opportunities and ensuring disability rights are preserved and protected i represent seven counties in the city in one city and these kind of services are lacking almost throughout my entire district and because i'm in a rural area so i just have to say that i love the advocacy they're doing here today um and the ways they're trying to expand in my district and i appreciate them coming here and advocating for those that are trying to live fruitful productive lives out on their own with just a little help and we need to support these people and i appreciate it i thank the

[00:55:19] senator for that introduction and thank you to the arc of south side for being here in the gallery today importantly thank you for the advocacy that you are sharing thank you for sharing your stories with our representatives knowing how very important it is that we continue and extend the the support and the resources for which you are advocating senators I ask that we give the warm welcome of the

[00:55:45] Senate to the arc of Southside this the chair recognizes the senator from central Fairfax thank you madam president I rise for an introduction the Senator has the floor.

[00:56:08] The President: Thank you, Madam President. Madam President, today in the Capitol, we have members of the MOVE Business Chamber that are present, which was established back in 2022. The MOVE Chamber's mission is to connect, inform, promote, and advocate for Muslim American businesses by providing access to opportunity and removing structural barriers.

[00:56:29] Today, they have had over 150 members in attendance, so you may have seen most of them in the building. so that, Madam President, I ask that you give them the warm welcome of the Senate, and I do believe it's one gentleman right now. - Thank you, well, I see three.

[00:56:46] If you will please stand. Representatives from the MOVE Business Chamber, thank you to the Senator for that introduction, and I know that you represent many additional members, and we have certainly seen members of MOVE visiting our legislative offices.

[00:57:03] Thank you for being here today. thank you for advocating on issues that impact so many of our communities, most especially in the areas of our small businesses and the work that you continue to do. Senators, I ask that we give the warm welcome of the Senate to the MOVE Business Chamber.

[00:57:22] Seeing no further introductions, resolutions, petitions, and bills are now in order. Is there any other business for the morning hour? The clerk will call the calendar.

[00:57:44] The Senate calendar for Thursday, January the 22nd, 2026. Uncontested calendar. Senate bills on third reading. The chair recognizes the senator from Eastern Fairfax.

[00:58:05] Madam President, I move the Senate bills on third reading. Uncontested calendar on pages 1 through 4. Senate bills 86 through 303 be placed on their final passage in the block. Any senator desiring to move a bill from the block, please do so after the clerk has read the number of the bill. The question is, shall the Senate bills on the uncontested calendar, third reading, pages one through four, Senate Bill 86 through Senate Bill 303, be placed upon their final passage in the block, with the understanding that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill?

[00:58:42] All in favor of the motion, we'll say aye. Any opposed, no. The ayes have it. The motion is agreed to. The bills are before us in the block. The clerk will read the number of the bills. Senate Bill 86,

Senate Bill 111, Senate Bill 116, Senate Bill 127, Senate Bill 146, Senate Bill 153, Senate Bill 179, Senate Bill 281, Senate Bill 289, Senate Bill 303.

[00:59:20] The question is, shall the bills in the block pass, that is all bills that have been named, are the senators ready to vote? All in favor of the passage will record their votes, aye. Those opposed, no.

[00:59:38] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The bills in the block pass. Regular calendar, Senate bills on third reading.

[00:59:57] Senate Bill 18, a bill relating to children, adjudication of delinquency. The chair recognizes the senator from Hampton. Thank you, Madam President. I move the Senate Bill 18 passed and speaking to that. The senator has the floor.

[01:00:13] Thank you, Madam President. Senate Bill 18 establishes a minimum age of delinquency in Virginia. Virginia currently does not have a minimum age for children to be adjudicated delinquent. Senate Bill 18 will amend Virginia's juvenile code to clarify that children 10 years and under should not be criminalized and best served through existing systems and services.

[01:00:34] And with that explanation, Madam President, I move the Senate Bill 18 pass. The question is, shall Senate Bill 18 pass? All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[01:00:50] Do any senators desire to change their votes? The clerk will close the roll. Ayes 29, noes 11. Ayes 29, noes 11. Senate Bill 18 passes. Senate Bill 44.

[01:01:06] A bill relating to registration by localities of cemeteries on private property, Planning District 8. The chair recognizes the senator from Western, Prince William. Thank you, Madam President. Madam President, I move the bill pass in speaking to that motion.

[01:01:23] The senator has the floor. Thank you, Madam President. Madam President, SB 44 requires localities only in northern Virginia to adopt an ordinance setting forth a register of identified cemeteries, graveyards and other places of burial located on private property not belonging to any memorial or monumental association under current law all localities are permitted but not required to pass such an ordinance the bill has a delayed effective date of July 1st 2027 the whole point of this is to make sure that when there is development happening that we do not have further disruption of cemeteries and especially historic African American and Native American cemeteries in my district which has been a problem so with

[01:02:01] That, Madam President, I renew motion to pass the bill. The question is, shall Senate Bill 44 pass? All in favor of the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote?

[01:02:18] Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 31, noes 9. Ayes 31, noes 9. Senate Bill 44 passes.

[01:02:33] Senate Bill 77, a bill relating to repairs of maintenance of property or maintenance of property entering adjoining property petition for entry. The chair recognizes the senator from Western Henrico.

[01:02:51] Thank you, Madam President. Madam President, I move passage of Senate Bill 77 and speaking to that motion. The senator has the floor. Thank you, Madam President. Madam President, members of

the body, this is about zero lot lines and really impacts a couple communities in Virginia. Richmond, Norfolk, Alexandria, where you have old homes and zero lot lines before there were easements.

[01:03:11] And it's about being able to repair your house when the person on the zero lot line next to you won't provide you access. It provides a legal way to try to make the repairs that you need to make. The substitute that we adopted yesterday just tightens up the process that you go through in court.

[01:03:29] But I would hope that the body would move passage of Senate Bill 77. The question is, shall Senate Bill 77 pass? All in favor of the motion will record their votes aye. Those opposed no, are the senators ready to vote? Have all the senators voted?

[01:03:45] Do any senators desire to change their votes? The clerk will close the roll. Ayes 34, noes 5. Ayes 34, noes 5. Senate Bill 77 passes. Senate Bill 107, a bill relating to exemptions for jury service upon request, certain caretakers of persons with serious health conditions.

[01:04:13] The chair recognizes the senator from Western Fairfax. Thank you, Madam President. I move the bill pass in speaking to it. The senator has the floor. Thank you. This bill simply adds two exemptions to the list of allowable exemptions of jury service. One is for a person with a child under 18 years of age with serious health conditions, and the second one is a person, including a familial caretaker, who is personally responsible for a person with serious health conditions. And as we know, there are serious healthcare worker

[01:04:51] needs right now. I think this is something that has passed in other states and makes sense to exempt here as well. Thank you. The chair recognizes the senator from Colonial Heights. Thank you, Madam President. Speaking to the bill. The senator has the floor. Madam President, this bill has a very laudable goal of helping out people who have significant circumstances going on at home and folks they need to take care of and so the intent is 100% right and

[01:05:25] understandable. The challenge is and you may not feel this as acutely unless you represent criminal defendants in court or folks who have been injured but these are the kind of folks that when they can serve we want them on our juries. They provide a vital perspective to be able to hear cases both criminal and civil and as the law currently exists our judges that we appoint already have the discretion to let these folks add a jury service if they truly don't have another another option but I think it's

[01:06:03] important for us to remember that you know we don't just want people serving on our juries who are able to be there that day and don't necessarily have other things going on in their lives we want to have that broad base of our communities serving on our juries so that people get fair trials thank you madam president the chair recognizes the senator from Western Fairfax thank you madam president just speaking to this bill the senator has the floor thank you I appreciate the comments from the senator across the aisle and I wholeheartedly agree and that's why under this this bill the way it is

[01:06:43] written if these persons are able to the request is only under their purview if they cannot so with that I move passage of the bill the question is shall Senate bill 107 pass all in favor of the motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their votes the clerk will close the roll Ayes 30, noes 10.

[01:07:17] Ayes 30, noes 10. Senate Bill 107 passes. Senate Bill 137, a bill relating to obstructing health care facility access penalties. The chair recognizes the senator from Western Fairfax.

[01:07:37] Thank you, Madam President. I move the bill pass in speaking to that motion. The senator has the floor. Thank you, Madam President. This bill seeks to ensure that anybody who is trying to access a healthcare facility is not obstructed by someone who is protesting or passing out leaflets or anything that may want to do.

[01:08:01] This creates a very tight area of protection, and I want to say that this bill explicitly does not place any restrictions on the content of any message that anybody may be sharing of any protesting or information that they want to pass to anybody there.

[01:08:26] It just says you cannot harass, you cannot obstruct within this tight radius. And I will say that this has passed in other states, in fact, over two decades ago and more recently a few years ago and been upheld as constitutional in court.

[01:08:46] And I hope it is the will of the body to pass this. The chair recognizes the senator from Colonial Heights. Thank you, Madam President. Speaking to the bill. The senator has the floor. Madam President, this bill is very clearly aimed at silencing those who peacefully pray outside abortion clinics.

[01:09:04] But as drafted, it's written so broad that it's going to turn everyday behaviors into class three misdemeanors under this bill. You can't approach anyone within a 40 foot buffer around any health care facility entrance without the person's consent to hand out information, to show a sign or to even talk about a protest for education or counseling and it's a class three misdemeanor if this bill passes it's intent obviously intentionally targeted at pro-life Virginians who are praying outside

[01:09:42] these abortion clinics and that's not something we should be doing where we're punishing faith and free expression but I think it's important for the body to recognize what else this is going to criminalize because it's not just the prayer warriors that are going to be targeted, think about this, nurses who are striking or rallying outside of a healthcare facility, it's going to criminalize their behavior to approach a colleague to talk about better wages or better care at that healthcare facility.

[01:10:21] This bill is written so broadly that even if you had Girl Scouts who were out front of a doctor's office selling Girl Scout cookies they could potentially be held criminally liable for handing out an order form to somebody who walks by and doesn't consent to that and so this is very overbroad as drafted and it as was noted it applies to not just one viewpoint but I mean think about the pro-Palestine protesters out at UVA near the UVA Medical Center they would get

[01:10:58] caught up in this we've had rallies around the state against health care cuts if those are in out in front of a health care facility they would get caught up in this same thing for the no kings marches if they march past a health care facility within 40 feet and they're handing out information or showing signs that's potentially a class 3 misdemeanor so we already have laws on the books that protect people from real intimidation and the blocking of entrances this is not something that is necessary to provide additional

[01:11:32] protections and something that that is actually needed but again as drafted well I think the intent is to focus on abortion clinics and pro-life those who are peacefully praying it is going to catch a lot of other things as drafted and I think on its faces is certainly vague and unconstitutional so I hope it be the will of the body to vote no on this legislation.

[01:12:01] The chair recognizes the senator from Prince Edward. Thank you, Madam President. Speaking to the speaking of the bill, the senator has the floor. So the First Amendment texts the right to protest my understanding.

[01:12:17] And we have been, I would say, very, very liberal in our interpretation of that, including things like impeding traffic, which could impede someone on their way to a medical emergency, for example, and we've had protests that could be argued to be much more harassing or much more disruptive.

[01:12:38] This appears to be trying to narrowly silence a very particular viewpoint, which from my understanding was exactly what the First Amendment was supposed to prevent. So I would urge my colleagues to look outside of this particular issue and look at the precedent that we would be setting for when there's other people who who have the power to say well there's a different viewpoint that we would like to to suppress so i i will be voting against this bill and would encourage others to do the same thank you the chair recognizes the senior senator from

[01:13:13] loudon thank you madam chair madam chair i have heard um speaking to the bill madam chair the The senator has the floor. I'm sorry, Madam President. It's quite all right. Madam President, I have heard several times here now today and previously in committee that this bill is in some way aimed towards some limitation on the First Amendment of the Constitution, free speech.

[01:13:46] I would just point my friends and my colleagues down to Section D of this bill that specifically says nothing in this section shall be construed to place any restrictions on the content of any message that anyone may wish to communicate to anyone else either inside or outside the regulated areas there's nothing in this bill that that says what you can and cannot say so it's unclear to me the arguments about that this is about some sort of a viewpoint or something

[01:14:24] limiting what someone has to say America is unique in its first amendment rights unique even among other democracies across the world and how much we protect and value our First Amendment rights, the things that you say, regardless of whether or not you agree with a person who is speaking them. What the bill does do, however, is prevent, and I'm going to point people to Section B of the bill, which says that you're not allowed to obstruct, detain, hinder,

[01:15:03] impede, block, or delay another person's entry or exit into a facility that is a lawfully existing facility that is a health care facility. You're not allowed to stop them from going in. That's what you're not allowed to do. And someone said, we don't allow people to do that. That's right, we don't allow people to, as a former prosecutor, what I would say, abduct you. That's the word we use in Virginia. To stop you from moving freely in a lawful way to the places you are allowed to go.

[01:15:37] That has nothing to do with the First Amendment. The other thing that has been said here is about prayer and praying, and somehow this is going after people who pray or people who are praying for other people. I happen to be the granddaughter of a Southern Baptist minister. I grew up in church my entire life, and so my understanding, and someone here can correct me if I'm wrong, about

[01:16:11] prayer and the power of prayer is that you can pray for people from a distance. You can pray for people across the world, and most certainly you don't have to be within eight feet of people to pray for them. At least not the God that I worship doesn't need that. He can hear me just fine from right here, which is why I pray for the people of Ukraine and the invasion of their country, and it's why I pray for the people whose vaccines got taken away by our current president who are

[01:16:48] relying on them, because I think he can hear me just fine. So, Madam President, I don't believe this bill has anything to do with limiting anyone's free speech, what they want to say to their God or to anyone else but you are going to leave the people alone who want to go see their doctor just because you

may not agree with why they're going to the doctor is not a reason that you get to keep them from doing it thank you madam president the chair recognizes the senator from western fairfax thank you madam president speaking to the bill once again the senator has

[01:17:25] the floor thank you madam president it's always great to have the assist from your lawyer friends on this side of the aisle um i i will not get into the legal portion of this because that has already been decided that this is a constitutionally upheld law and in fact the law that was upheld there created a hundred foot radius.

[01:17:50] We are creating a forty foot radius just like we do around voting places. So this is very tight and anybody who would like to pray, who would like to share commentary, like to pass out leaflets can do that outside of that 40-foot area. And I heard somebody say that our laws are working. We have laws to protect people who need to access health care. Well, the reason this bill has come here now for the second time in a row is because in Fairfax County,

[01:18:26] I have spoken to patients and to providers that are being blocked, harassed, scared, and unable to get into their health care facility to access the lawful services that they are providing.

[01:18:46] Nobody has the right to obstruct my access or any other woman or man's access to the health care that they need. So I hope it is the will of this body today to agree that everyone has the right legal safe healthcare access.

[01:19:07] Thank you. I move the bill pass. - The question is, shall Senate Bill 137 pass? All in favor of the motion will record their votes aye. Those opposed no. Are the senators ready to vote?

[01:19:22] Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. -Ayes 20, noes 19. -Ayes 20, noes 19. Senate Bill 137 passes.

[01:19:38] -Uncontested calendar Senate Bill on second reading. Senate Bill 96, a bill related to income tax credit braille labeling program reported from the Committee on Finance and Appropriations with a substitute.

[01:19:53] -The chair recognizes the senator from Western, Prince William. -Thank you, Madam President. Madam President, I move the committee substitute be agreed to. The question is, shall the committee substitute from the committee on finance and appropriations be agreed to?

[01:20:09] All in favor of the motion will say aye. Aye. Any opposed, no. The ayes have it. The committee substitute from the committee on finance and appropriations is agreed to. Uncontested calendar. The chair calls on the senator from Eastern Fairfax.

[01:20:31] Madam President, I move that all the Senate bills on first reading on the uncontested regular counters pages 7 through 9 Senate bills 89 through 440. My apologies senator the chair the chair recognizes the senator from Western Prince William again to engrossed in advance. Madam President I rise to move engrossment of the bill and advancing to its third constitutional reading. Thank you the question is shall the shall bill SB 96 be engrossed in advance to

[01:21:08] his third constitutional reading. All in favor will say aye. Any opposed, no. The ayes have it. Senate Bill 96 is engrossed and advanced to his third constitutional reading. I'm sorry, Madam President. I threw everything off. Uncontested calendar. Senate bills on first reading.

[01:21:29] The chair recognizes the senator from Eastern Fairfax. Thank you, Madam President. I move without all the Senate bills on first reading. On the uncontested regular calendars, pages seven through 9 Senate bills 89 through 449 that the rules be suspended in the first constitutional reading of the titles be dispensed with the question is shall the rules be suspended in the first constitutional reading of the titles of the Senate bills on the uncontested and regular calendars on pages 7 through 9 Senate bill 89 through Senate bill 449 be dispensed with all in favor of the motion will record their votes aye those opposed no are the senators ready

[01:22:06] to vote. Have all the senators voted? Do any senators desire to change their votes? The clerk will close the roll. Ayes 39, no 0. Ayes 39, no 0. The reading of the titles is dispensed with. Memorial resolutions. The chair calls on the senator from Eastern Fairfax.

[01:22:38] Madam President, I move the memorial resolutions on pages 9-11, HJR 5-SR 12. Be considered the block in the usual manner waving senator shall the senate bills on the uncontested regular calendars go by yeah i move those bills goodbye for the day thank you senator the question is shall the senate bills on the uncontested and regular calendars now on their second reading be passed by for the day all in favor of the motion we'll say aye aye any opposed no the ayes

[01:23:12] have it the bills will go by for the day the chair calls on the senator from eastern fairfax sorry legislating distractedly over here madam president i move the commanding resolutions on pages 11 through 13 hjr 10 through sr 11 be considered a block by a voice vote waiving the reading of the resolutions we understand that any center desiring to remove a resolution from the block will do so after the clerk has read the number of the resolution all in favor of the

[01:23:40] motion will say aye any opposed no the ayes have it he read the thing for commending but i think just just go for it read the read the titles memorial resolutions house joint resolution 5 celebrating the life of peter lee lustig

[01:24:11] house joint resolution 52 celebrating the life of william j martin senate joint resolution 32 celebrating the life of kevin john mcdonald senate joint resolution 36 celebrating the life of William Bruce Rutherford, United States Navy, retired.

[01:24:43] Senate Joint Resolution 42, celebrating the life of the Honorable Thomas Selby Ellis III. Senate Joint Resolution 43, celebrating the life of Ruth Gude Moten.

[01:25:00] Senate Joint Resolution 44, celebrating the life of Marquetta Neal Tyson. Senate Joint Resolution 45, celebrating the life of William M. Klein Sr., Senate Joint Resolution 46, celebrating the life of Anita Gordon Plastic Ed.D., Senate Joint Resolution 47, celebrating the life of Everett Hicks Sr., Senate Joint

[01:25:34] Resolution 50, celebrating the life of Virginia Ellen Thomas Fieser, Senate Resolution 4, celebrating the life of William J. Martin. Senate Resolution 7, celebrating the life of William Luther Vachon.

[01:25:55] Senate Resolution 12, celebrating the life of Tracy Lynn Jenkins. The resolutions will be agreed to in the usual manner. All those in favor of agreeing to the memorial resolutions, please rise.

[01:26:18] The resolutions are agreed to. Commending resolutions. The chair recognizes the senator from Eastern Fairfax. Madam President, I move the commending resolutions on pages 11 through 13, H.J.R. 10

through S.R. 11 be considered in the block by a voice vote, waiving the reading of the resolutions with the understanding of any senator desiring to move the resolution from the block or do so after the clerk has read the number of the resolution.

[01:26:45] The question is, shall the commending resolutions on pages 11 through 13, H.J.R. 10 through S.R. 11 be considered in the block by a voice vote, waiving the reading of the resolutions with the understanding that any senator desiring to remove a resolution from the block will do so after the clerk has read the number of the resolution. All in favor of the motion will say aye. Any opposed, no. The ayes have it. The motion is agreed to. The resolutions are before us in a block.

[01:27:17] The clerk will read the number of the resolution. House Joint Resolutions 10, 12, 53, Senate Joint Resolution 37, 39, 40, 41, 49, 51, 52, 53, 54, Senate Resolutions 5, 8, 9, 10, 11.

[01:27:44] The question is, shall the resolutions be agreed to? All in favor of agreeing to the resolutions, we'll say aye. Any opposed, no. The resolutions are agreed to. The chair calls on the senator from Eastern Fairfax.

[01:28:08] Inquiry to the clerk, does that complete today's calendar? Yes, sir. Hallelujah. We will now return briefly to the morning hour. We have some additional guests who have joined us in the gallery. The chair recognizes the senator from Richmond City. Madam President, I rise for the purpose of an introduction.

[01:28:30] The senator has the floor. Thank you, Madam President. Today, I rise with great pride to recognize Virginia Union University. If they're here in the chamber, I'd ask them to stand. It's an institution whose legacy of leadership, service, and academic excellence has shaped not only the city of Richmond, but the Commonwealth of Virginia and beyond.

[01:28:49] For over 160 years, Virginia Union University has stood as a beacon of opportunity, educating students, cultivating purpose-driven leaders, and advancing ideals of justice, equity, and service. And might I add, many of the churches that are in the Commonwealth and around the country have men and women who have matriculated at the School of Theology, the Samuel DeWitt Proctor School of Theology at Virginia Union.

[01:29:16] This recognition is especially meaningful to me because my own journey in public service started there. Under the leadership of President and CEO, Dr. Hakeem J. Lucas, the university is experiencing a powerful resurgence marked by increased enrollment.

[01:29:32] expanded academic programs, national recognition, and strengthen outcomes for students and graduates. Virginia University is not only persevering or preserving its legacy, it's redefining excellence for generations to come. Thank you, Madam President. Thank you, Senator, for that introduction.

[01:29:53] Thank you to the representatives and the leaders from Virginia Union University. Thank you for the the hard work that each of you are doing. I especially applaud our student leaders who are joining us here today. Thank you for the fine representation that you are providing for your wonderful university.

[01:30:10] Senators, I ask that we give the warm welcome of the Senate to the representatives of Virginia Union University. The chair recognizes the senator from Central Fairfax.

[01:30:30] Thank you, Madam President. I rise for the purposes of an introduction. The senator has the floor. Madam President, we are joined today in the gallery by Church World Service of Harrisonburg and Winchester, a refugee settlement agency welcoming refugees and immigrants from around the world to the Shenandoah Valley for more than 30 years.

[01:30:49] CWS worked alongside partnerships with individuals, faith communities, local organizations, and community leaders to empower Virginia's newest neighbors to build new lives and peace through resettlement and integration like housing, education, healthcare, legal immigration services, home study and post-release services and advocacy that amplifies refugees and immigrant voice.

[01:31:14] Madam President, I ask that you extend the warm welcome of the Senate. - I thank the Senator for that introduction and welcome to the representatives of the Church World Service. Thank you for being here today. Thank you for the work that you are doing and the advocacy that you are sharing as you meet with your representatives throughout today.

[01:31:32] senators i ask that we give the warm welcome of the senate to the representatives of the church world service is there any other business to come before the senate madam president i was going to call on you you just you jumped up the chair recognizes the senator from charlottesville madam president i rise for an announcement the senator has the floor for the past two years i've served as chair of the center for rural virginia and i'm pleased to announce the first rural caucus

[01:32:08] meeting of the 2026 General Assembly session will occur today at 5 p.m. The Rural Caucus meeting in the General Assembly building on the ninth floor meeting room. At today's Rural Caucus meeting, we'll hear from the Honorable Kerry Chenery, who's our Secretary of Commerce and Trade, the Honorable Katie Frazier, the Secretary of Agriculture and Forestry, Charles Green, the VDOX Commissioner, and Terry Lasher, the State Forester.

[01:32:34] I hope that you all will make an effort to attend. Thank you. Thank you, Senator. The clerk will report any announcements on the desk. Today, Thursday, January 21st, the Committee on Transportation will meet 15 minutes after adjournment, Senate Room B.

[01:33:06] Committee on Education and Health, Subcommittee on Public Education will meet 30 minutes after adjournment in Senate Room C. The Finance and Appropriations Subcommittee on Education will meet at 3 o'clock in the Senate Finance and Appropriations Room, 13th floor.

[01:33:23] The Committee on Finance and Appropriations will meet at 4:00 p.m. in the Finance and Appropriations Room, 13th Floor. The Rural Caucus will meet at 5:00 p.m. in House Room 900.

[01:33:38] The Chair recognizes the Senator from Portsmouth. Thank you, Madam President. Madam President, I move that the Senate do now adjourn until maybe 11 o'clock tomorrow.

[01:33:59] 11:00 a.m. Do I hear 10? 11:00 a.m. tomorrow, Madam President.

[01:34:15] Thank you. Thank you, Senator. The question is, shall the Senate adjourn until 11 a.m. tomorrow? All in favor of the motion, we'll say aye. Any opposed? No? Seems to me that the ayes have it.

[01:34:31] The motion is agreed to. The Senate stands adjourned until 11 a.m. tomorrow.

[01:34:46] This is the Senate of Virginia, Richmond, Virginia.

[01:35:11] Chamber.

[01:36:12] This is the Senate of Virginia, Richmond, Virginia.

[01:38:15] chamber.



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